

CONSULTING AGREEMENT

BETWEEN

..., a Belgian SPRLU having its principal place of business at ..., registered at the Banque Carrefour des Entreprises (B.C.E.) under number ..., represented for the purposes hereof by

Hereinafter referred to as the “**Company**”

and

..., a Belgian SPRL having its principal place of business at ..., registered at the Banque Carrefour des Entreprises (B.C.E.) under number ..., represented for the purposes hereof by ...

Hereinafter referred to as the “**Consultant**”

Hereinafter both referred to as “the parties” or individually “the party”

PREAMBLE

The Company is a company active in the sector of

The Consultant is specialized in the provision of the services outlined in this Agreement.

Company and Consultant desire to have Consultant perform services for Company, subject to and in accordance with the terms and conditions of this Agreement.

THEREFORE, the parties agree as follows:

1. SERVICES

- 1.1. Statement of Work. Company and Consultant have executed (or will execute) a statement of work, substantially in the form attached hereto, that describes the specific services to be performed by Consultant (as executed, a “**Statement of Work**”). The Statement of Work will expressly refer to this Agreement, will form a part of this Agreement, and will be subject to the terms and conditions contained herein. The Statement of Work may be amended only by written agreement of the parties.
- 1.2. Performance of Services. Consultant will perform the services described in the Statement of Work (the “**Services**”) in accordance with the terms and conditions set forth in such Statement of Work and this Agreement.

- 1.3. Consultant Personnel. Consultant may perform Services through its regular, full-time employees and through subcontractors referred to collectively as the “***Consultant Personnel***”).
- 1.4. Delivery. Consultant will deliver to Company the deliverables, designs, modules, software, products, documentation and other materials (individually or collectively, “***Deliverables***”) in accordance with the delivery schedule and other terms and conditions agreed.

2. PAYMENT

- 2.1. Fees. As Consultant’s sole compensation for the performance of Services, Company will pay Consultant the fees specified in the Statement of Work in accordance with the terms set forth therein.
- 2.2. Expenses. Unless otherwise provided in the Statement of Work, Company will also reimburse Consultant for all reasonable and customary out-of-pocket travel, lodging and related expenses incurred by Consultant in connection with Consultant’s performance of Services. At Company’s request, Consultant will furnish Company with copies of receipts and other customary documentation for any expenses for which Consultant requests reimbursement hereunder.
- 2.3. Payment Terms. All fees and other amounts set forth in the Statement of Work, if any, are stated in and are payable in euros (€), unless stated otherwise. Unless otherwise provided in the Statement of Work, Consultant will invoice Company on a monthly basis for all fees and expenses payable to Consultant. Company will pay the full amount of each such invoice within -ten (10) days following receipt thereof.

3. RELATIONSHIP OF THE PARTIES

- 3.1. Independent Contractor. Consultant is an independent contractor and nothing in this Agreement will be construed as establishing an employment or agency relationship between Company and Consultant or any Consultant Personnel. Consultant has no authority to bind Company by contract or otherwise. Consultant will perform Services under the general direction of Company, but Consultant will determine, in Consultant’s sole discretion, the manner and means by which Services are accomplished, subject to the requirement that Consultant will at all times comply with applicable law.
- 3.2. Taxes. Consultant will report to all applicable government agencies as income all compensation received by Consultant pursuant to this Agreement.
- 3.3. Liability Insurance. Consultant acknowledges that Company will not carry any liability insurance on behalf of Consultant.

4. INTELLECTUAL PROPERTY RIGHTS

- 4.1. Ownership of Consultant Work Product. Consultant and Company agree that, to the fullest extent permitted by applicable law, each item of Consultant Work Product will be a work made for hire owned exclusively by Company. Consultant shall fully assign to Company all intellectual property rights of his services, including on any software, source codes and databases. Consultant undertakes to assist Company with procedures in obtaining any necessary license or patent in relation to the Services.
- 4.2. Moral Rights. To the fullest extent permitted by applicable law, Consultant also hereby irrevocably transfers and assigns to Company, and agrees to irrevocably transfer and assign to Company, and waives and agrees never to assert, any and all Moral Rights (as defined below) that Consultant or any Consultant Personnel may have in or with respect to any Consultant Work Product, during and after the term of this Agreement. “*Moral Rights*” mean any rights to claim authorship of a work, to object to or prevent the modification or destruction of a work, to withdraw from circulation or control the publication or distribution of a work, and any similar right, existing under judicial or statutory law of any country in the world, or under any treaty, regardless of whether or not such right is called or generally referred to as a “moral right.”

5. CONFIDENTIAL INFORMATION

For purposes of this Agreement, “*Confidential Information*” means and will include: (i) any information, materials or knowledge regarding Company and its business, financial condition, products, programming techniques, customers, suppliers, technology or research and development that is disclosed to Consultant or to which Consultant has access in connection with performing Services; (ii) the Consultant Work Product; and (iii) the terms and conditions of this Agreement. Confidential Information will not include any information that: (a) is or becomes part of the public domain through no fault of Consultant; (b) was rightfully in Consultant’s possession at the time of disclosure, without restriction as to use or disclosure; or (c) Consultant rightfully receives from a third party who has the right to disclose it and who provides it without restriction as to use or disclosure. Consultant agrees to hold all Confidential Information in strict confidence, not to use it in any way, commercially or otherwise, except in performing Services, and not to disclose it to others. Consultant further agrees to take all actions reasonably necessary to protect the confidentiality of all Confidential Information including, without limitation, implementing and enforcing procedures to minimize the possibility of unauthorized use or disclosure of Confidential Information.

6. NON-SOLICITATION OF STAFF

During the term of this Agreement, Consultant will not directly or indirectly solicit the services of any Company employee or consultant for Consultant’s own benefit or for the benefit of any other person or entity.

7. INDEMNITY

7.1. Consultant will defend, if appropriate indemnify and hold Company harmless from and against all claims, damages, liabilities, losses, expenses and costs (including reasonable fees and expenses of attorneys and other professionals) arising out of or resulting from:

- a) any action by a third party against Company that is based on a claim that any Services performed under this Agreement, or the results of such Services (including any Consultant Work Product), or Company's use thereof, infringe, misappropriate or violate such third party's Intellectual Property Rights; and
- b) any action by a third party against Company that is based on any act or omission of Consultant or any Consultant Personnel and that results in: (i) personal injury (or death) or tangible or intangible property damage (including loss of use); or (ii) the violation of any statute, regulation or ordinance.

7.2. Company will defend, if appropriate indemnify and hold Consultant harmless from and against all claims, damages, liabilities, losses, expenses and costs (including reasonable fees and expenses of attorneys and other professionals) arising out of or resulting from third parties against Consultant that is based on a claim on a violation of non-competition or non-solicitation clauses signed by Company with third parties.

8. TERM AND TERMINATION

- 8.1. Term. This Agreement will commence on the Effective Date as stated in the Statement of Work and, unless terminated earlier in accordance with the terms of this Agreement, will remain in force and effect for as long as Consultant is performing Services pursuant to the Statement of Work.
- 8.2. Termination for Breach. Either party may terminate this Agreement (including the Statement of Work) if the other party breaches any material term of this Agreement and fails to cure such breach within thirty (30) days following written notice thereof from the non-breaching party.
- 8.3. Termination for Convenience. Company or Consultant may terminate this Agreement (including the Statement of Work) at any time, for any reason or no reason, upon at least thirty (30) days written notice to Company or Consultant.
- 8.4. Effect of Termination. Upon the expiration or termination of this Agreement for any reason: (i) Consultant will promptly deliver to Company all Consultant Work Product, including all work in progress on any Consultant Work Product not previously delivered to Company, if any; (ii) Consultant will promptly deliver to Company all Confidential Information in Consultant's possession or control; and (iii) Company will pay Consultant any accrued but unpaid fees due and payable to Consultant pursuant to Section 2.

9. GENERAL

- 9.1. Assignment. Consultant may not assign or transfer this Agreement, in whole or in part, without Company's express prior written consent. Any attempt to assign this Agreement, without such consent, will be void. Subject to the foregoing, this Agreement will bind and benefit the parties and their respective successors and assigns.
- 9.2. No Election of Remedies. Except as expressly set forth in this Agreement, the exercise by Company of any of its remedies under this Agreement will not be deemed an election of remedies and will be without prejudice to its other remedies under this Agreement or available at law or in equity or otherwise.
- 9.3. Attorneys' Fees. If any action is necessary to enforce the terms of this Agreement, the substantially prevailing party will be entitled to reasonable attorneys' fees, costs and expenses in addition to any other relief to which such prevailing party may be entitled.
- 9.4. Governing Law. This Agreement will be governed by and construed in accordance with Belgian laws. Any legal action or proceeding arising under this Agreement will be brought exclusively before the French Commercial Court of Brussels and the parties irrevocably consent to the personal jurisdiction and venue therein.
- 9.5. Severability. If any provision of this Agreement is held invalid or unenforceable by a court of competent jurisdiction, the remaining provisions of this Agreement will remain in full force and effect, and the provision affected will be construed so as to be enforceable to the maximum extent permissible by law.
- 9.6. Waiver. The failure by either party to enforce any provision of this Agreement will not constitute a waiver of future enforcement of that or any other provision.
- 9.7. Notices. All notices required or permitted under this Agreement will be in writing, will reference this Agreement, and will be deemed given: (i) when delivered personally; (ii) one (1) business day after deposit with a nationally-recognized express courier, with written confirmation of receipt; or (iii) three (3) business days after having been sent by registered or certified mail, return receipt requested, postage prepaid. All such notices will be sent to the addresses set forth above or to such other address as may be specified by either party to the other party in accordance with this Section.
- 9.8. Entire Agreement. This Agreement, together with the Statement of Work, constitutes the complete and exclusive understanding and agreement of the parties with respect to its subject matter and supersedes all prior understandings and agreements, whether written or oral, with respect to its subject matter. In the event of a conflict, the terms and conditions of the Statement of Work will take precedence over the terms and conditions of this Agreement. Any waiver, modification or amendment of any provision of this Agreement will be effective only if in writing and signed by the parties hereto.

9.9. Counterparts. This Agreement may be executed in counterparts, each of which will be deemed an original, but all of which together will constitute one and the same instrument.

IN WITNESS WHEREOF, the parties have executed this Agreement as of the Effective Date.

COMPANY:

By: ...

Date:

CONSULTANT:

By:

Date:

